

Court No. - 21

Case :- WRIT - C No. - 6079 of 2024

Petitioner :- Samay Singh

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ram Raj Pandey, Shubham Pandey

Counsel for Respondent :- Alok Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

Lay before another Bench after seeking nomination from Hon'ble The Chief Justice as a fresh case on 29.02.2024.

Order Date :- 26.2.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 6079 of 2024

Petitioner :- Samay Singh

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ram Raj Pandey, Shubham Pandey

Counsel for Respondent :- Alok Mishra, Ravi Anand Agarwal

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

Sri Ravi Anand Agarwal, counsel for the respondent has obtained instructions. He is directed to file counter affidavit on the basis of instructions received bringing on record such material as he chooses to rely upon. This may be done within ten days.

Put up as fresh after ten days.

Order Date :- 7.3.2024

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Court No. - 3

Case :- WRIT - C No. - 6079 of 2024

Petitioner :- Samay Singh

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ram Raj Pandey, Shubham Pandey

Counsel for Respondent :- Alok Mishra, Ravi Anand Agarwal

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Counter-affidavit filed by learned counsel for the respondent no.2 is taken on record.
2. Learned counsel for the petitioner prays for and is granted three days time to file rejoinder-affidavit.
2. Put up immediately on the expiry of aforesaid period.

Order Date :- 18.3.2024

Aditya Tripathi

Court No. - 3

Case :- WRIT - C No. - 6079 of 2024

Petitioner :- Samay Singh

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ram Raj Pandey, Shubham Pandey

Counsel for Respondent :- Alok Mishra, Ravi Anand Agarwal

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Rejoinder affidavit filed in Court today is taken on record.
2. Heard Sri Sarthak Varma holding brief of Sri Ram Raj Pandey, learned counsel for the petitioner and Sri Ravi Anand Agarwal, learned counsel appearing on behalf of respondent no.
3. This petition has been filed seeking the following relief:

"I. A writ order or direction in the nature of certiorary quashing the impugned demand notice dated 11.01.2023 (Annexure No.2 to this writ petition) issued under Section 3-(Recovery of Electricity Dues) of Act 16 of 1958) by respondent no. 2 to the petitioner."
4. The petitioner has challenged the demand notice dated 11.01.2023 annexing as Annexure No. 2 to the writ petition alleged to have been issued to him under Section 3 of Recovery of Electricity Dues Act, 1958.
5. Contention of counsel for the petitioner is that Clause 8.1(a)(v) of the U.P. Electricity Supply Code, 2005 has not been complied with in any case. Sub-clause (vi) provides that the copy of the inspection report is necessarily required to be served upon the consumer but this is not done. The demand notice has been issued on the basis of a provisional assessment.

6. The parties are not at issue that no final assessment order has been passed till date.

7. A short counter affidavit filed by respondent no. 2 states that the demand notice has been issued after service of notice upon the petitioner by registered post. This averment is to be found in paragraph 6 and 7 of the counter affidavit. Paragraph 6 states that the provisional assessment and notice dated 15.09.2022 was sent to the petitioner by registered post on 22.09.2022. However, no objection or reply was filed by the petitioner within time and thereafter the notice dated 11.01.2023 had been sent to the petitioner.

8. The issue as to whether the provision contained in Clause 8.1(a) (vi) of the Electricity Supply Code, 2005 has been complied with or not is primarily a factual dispute.

9. Under the circumstances and since no final assessment has been made, we dispose of this petition directing the petitioner to file a comprehensive representation within a period of two weeks from today.

10. In case the comprehensive representation referred to above is filed within the time granted, respondents are expected to decide the same by reasoned and speaking order after hearing all the parties within a period of three weeks. However, it shall be open to the respondent no. 2 to decide the representation in less than three weeks.

11. It is further provided that for a period of six weeks or till decision on the representation filed by the petitioner, whichever is earlier, no coercive steps shall be taken by the respondents against the petitioner.

Order Date :- 8.4.2024/Ruhi H.